

9.	26CV0723	JONATHAN EFRIN GALLEGOS VS. PARK PLACE FINANCE, LLC ET AL
MOTION TO COMPEL DISCOVERY RESPONSES / DEMURRER / LODGING RECORDED NOTICE OF CESSATION AND CLAIMANT-SPECIFIC LIEN-DEADLINE EVIDENCE		

Before the Court are three motions: 1) Plaintiff's Motion to Compel Discovery Responses; 2) Demurrer; and 3) Plaintiff's Notice of Lodging Recorded Notice of Cessation and Claimant-Specific Lien-Deadline Evidence.

MOTION TO COMPEL

On July 2, 2026, Plaintiff filed a Motion to Compel Discovery Responses, Deem Admissions Admitted, and Consider Supporting Guarantor Evidence. At issue are the Requests for Admission served on Defendant Ellington Management Group, LLC, Requests for Production served on Park Place Finance, LLC, and Special Interrogatories served on Servis One, Inc. dba BSI Financial Services. A Notice of Lodging Supplemental Service Evidence Regarding Waiver of Discovery Objections and Compelled Responses was filed on August 14, 2026.

Plaintiff argues that Defendants failed to serve verified responses by the June 24, 2026, statutory deadline and instead were delivered on June 25, 2026. There is no dispute that Defendants, Park Place Finance, LLC, Servis One, Inc. dba BSI Financial Services, Ellington Management Group LLC (collectively "Defendants"), mailed the discovery responses on June 24, 2026, and they were received by Plaintiff on June 25, 2026.

Plaintiff is correct in that Defendants' use of FedEx Ground shipping renders Code of Civil Procedure § 1013(c) inapplicable, as it is not overnight delivery within the meaning of the provision. Additionally, Code of Civil Procedure § 1013(a) requires mail service by United States Postal Service, which is also inapplicable. The Court accordingly finds Defendants' service of the discovery responses were untimely.

To the extent that Plaintiff seeks to compel further responses, the Court does not find that the meet and confer requirements pursuant to Code of Civil Procedure §§ 2030.300, 2031.310, and 2033.290(b)(1) were met, nor were the requirements of California Rules of Court, Rule 3.1345.

Defendants request sanctions in the amount of \$903.45, as Plaintiff's filing of this motion was intended to harass Defendants. Plaintiff previously filed an ex parte application seeking the same relief, which the Court denied, yet Plaintiff nevertheless filed the motion to compel.

Plaintiff's Motion to Compel Discovery Responses is denied. The Court does not find the imposition of sanctions is warranted and denies Defendants' request for sanctions.

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DEMURRER

On June 18, 2026, Defendants, Park Place Finance, LLC, Servis One, Inc. dba BSI Financial Services, Ellington Management Group, LLC, and Cheryl Mallory (collectively “Defendants”), filed a Demurrer to Plaintiff’s First Amended Complaint and a Request for Judicial Notice. The Proof of Service indicates Plaintiff was served on the same date. No Proof of Service is on file indicating co-defendants were served.

California Code of Civil Procedure § 1005(b) requires that all moving and supporting papers shall be served and filed at least 16 court days before the hearing, which includes service on counsel for all parties who have appeared in the action, whether or not the motion seeks relief against such parties. *Alford v. Superior Court* (2003) 29 Cal.4th 1033, 1048 [130 Cal.Rptr.2d 672, 683, 63 P.3d 228, 238].

As Defendants failed to serve all other co-defendants, service is deemed defective. Defendants’ Demurrer is denied without prejudice due to defective service.

The Court further finds that as this is a multiparty case, the Court orders Plaintiff to file and serve a list of parties within five days pursuant to California Rules of Court, Rule 3.254(a), which provides:

Except as provided under rule 2.251 for electronic service, if more than two parties have appeared in a case and are represented by different counsel, the plaintiff or petitioner named first in the complaint or petition must:

- (1) Maintain a current list of the parties and their addresses for service of notice on each party; and
- (2) Furnish a copy of the list on request to any party or the court.

Each party is ordered to comply with California Rules of Court, Rule 3.254(b), which provides:

Except as provided under rule 2.251 for electronic service, each party must:

- (1) Furnish the first-named plaintiff or petitioner with its current address for service of notice when it first appears in the action;
- (2) Furnish the first-named plaintiff or petitioner with any changes in its address for service of notice; and
- (3) If it serves an order, notice, or pleading on a party who has not yet appeared in the action, serve a copy of the list required under (a) at the same time as the order, notice, or pleading is served.

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NOTICE OF LODGING RECORDED NOTICE OF CESSATION

On August 14, 2026, Plaintiff filed a Notice of Lodging Recorded Notice of Cessation and Claimant-Specific Lien-Deadline Evidence. It is not clear to the Court what Plaintiff seeks, nor is a “notice of lodging” a recognized procedural motion.

Plaintiff’s Notice of Cessation is denied without prejudice.

TENTATIVE RULING #9:

PLAINTIFF’S MOTION TO COMPEL DISCOVERY RESPONSES IS DENIED. DEFENDANTS’ REQUEST FOR SANCTIONS IS DENIED.

DEFENDANTS’ DEMURRER IS DENIED WITHOUT PREJUDICE FOR DEFECTIVE SERVICE.

PLAINTIFF IS ORDERED TO FILE AND SERVE ON ALL PARTIES A LIST OF PARTIES PURSUANT TO CALIFORNIA RULES OF COURT, RULE 3.254(A) WITHIN FIVE (5) DAYS. EACH PARTY IS ORDERED TO COMPLY WITH CALIFORNIA RULES OF COURT, RULE 3.254(B).

PLAINTIFF’S NOTICE OF CESSATION IS DENIED WITHOUT PREJUDICE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.